



February 6, 2026

ENGROSSED

HOUSE BILL No. 1176

DIGEST OF HB 1176 (Updated February 4, 2026 6:56 pm - DI 143)

Citations Affected: IC 4-29.5; IC 6-1.1; IC 20-24; IC 20-25.7; IC 20-32; IC 20-43; IC 20-51.

Synopsis: Education matters. Provides that, beginning July 1, 2027, the Pokagon Indiana education fund must be used to make payment to certain Indiana public or private (instead of only public) institutions of higher learning or workforce development and training programs. Provides that, in addition to conditions established in current law to convert an existing public elementary or secondary school, an existing public elementary or secondary school may be converted into a charter school if certain other conditions apply. Allows, if the conditions are met, the governing body of a school corporation to: (1) convert more than one existing public elementary or secondary school within the school corporation; and (2) operate two or more conversion charter schools under a single charter. Prohibits the governing body of a school corporation from being the authorizer of a charter school and entering into or having a participating innovation network charter school
(Continued next page)

Effective: July 1, 2026; July 1, 2027.

Teshka, Lawson, Morris

(SENATE SPONSOR — ROGERS)

January 5, 2026, read first time and referred to Committee on Education.
January 8, 2026, amended, reported — Do Pass. Referred to Committee on Ways and Means pursuant to Rule 126.3.
January 22, 2026, amended, reported — Do Pass.
January 27, 2026, read second time, ordered engrossed.
January 28, 2026, engrossed. Read third time, passed. Yeas 61, nays 31.

SENATE ACTION

February 2, 2026, read first time and referred to Committee on Education and Career Development.
February 5, 2026, reported favorably — Do Pass; reassigned to Committee on Appropriations.

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Digest Continued

agreement with the charter school at the same time. Amends provisions regarding participating innovation network charter schools to allow an organizer to enter into an agreement with more than one school corporation. Amends requirements regarding the location of a participating innovation network charter school and terms of an agreement. Amends the duties of the department of education with regard to participating innovation network charter schools. Makes conforming changes, including changes to the complexity index. Requires parental notification if a school determines a student is at risk of not achieving grade level proficiency in mathematics. Amends the definition of "eligible student" for purposes of eligibility for school scholarships distributed by scholarship granting organizations.



February 6, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1176

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 4-29.5-18-1, AS ADDED BY P.L.171-2021,
2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2027]: Sec. 1. For so long as the Band makes payments in
4 accordance with IC 4-29.5-17, the Band shall allocate a portion of the
5 annual payment to provide funding for public **or private** postsecondary
6 and vocational education for Band citizens (the "Pokagon Indiana
7 Education Fund").
8 SECTION 2. IC 4-29.5-18-2, AS ADDED BY P.L.171-2021,
9 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
10 JULY 1, 2027]: Sec. 2. The Pokagon Indiana Education Fund shall be
11 used solely to make payments directly to Indiana public **or private**
12 institutions of higher learning or workforce development and training
13 programs approved by the Indiana Department of Workforce
14 Development for eligible Band citizens for direct costs and expenses,
15 such as tuition, on-campus room and board, and other direct education
16 expenses. To be eligible, a Band citizen must (i) be enrolled in the
17 Band prior to benefitting from any payment, and (ii) meet the education

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or workforce provider admission requirements. Priority shall be given to Band citizens who are legal residents of the State of Indiana as of the date of their application for benefits.

SECTION 3. IC 6-1.1-17-3.1, AS AMENDED BY P.L.136-2024, SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3.1. (a) This section:

(1) applies only to an operating referendum tax levy under IC 20-46-1 approved by the voters before January 1, 2023, that is imposed by a school corporation for taxes first due and payable in 2024 and 2025;

(2) does not apply to an operating referendum tax levy under IC 20-46-1:

(A) approved by the voters during a time that the school corporation imposing the levy was designated as a distressed political subdivision; or

(B) approved by the voters after December 31, 2022, and before January 1, 2025, that is imposed by a school corporation for taxes first due and payable in 2024 or 2025; and

(3) does not apply to any other tax year.

(b) As used in this section, "ADM" refers to the school corporation's average daily membership used to determine the state tuition support distribution under IC 20-43. In the case of a school corporation that has entered into an agreement with one (1) or more charter schools to participate as an innovation network charter school under IC 20-25.7-5, the term includes the average daily membership of **students described in IC 20-25.7-5-2(b)(2)** of any innovation network charter school that is treated as a school operated by the school corporation **with regard to students described in IC 20-25.7-5-2(b)(2)** when calculating the total amount of state tuition support to be distributed to the school corporation.

(c) Notwithstanding any increase in the assessed value of property from the previous assessment date, for taxes first due and payable in 2024, the total amount of operating referendum tax that may be levied by a school corporation may not exceed the lesser of:

(1) the maximum operating referendum tax that could have been levied by the school corporation if the maximum referendum rate was imposed for taxes first due and payable in 2023 multiplied by one and three-hundredths (1.03); or

(2) the maximum operating referendum tax that could otherwise be levied by the school corporation for taxes first due and payable in 2024.



The tax rate for an operating referendum tax levy shall be decreased, if necessary, to comply with this limitation.

(d) Notwithstanding any increase in the assessed value of property from the previous assessment date, for taxes first due and payable in 2025, the total amount of operating referendum tax that may be levied by a school corporation may not exceed the lesser of the following:

(1) The maximum operating referendum tax that could have been levied by the school corporation if the maximum referendum rate was imposed for taxes first due and payable in the immediately preceding calendar year, as adjusted by this section, multiplied by the result determined under STEP SEVEN of the following formula:

STEP ONE: Subtract:

(i) the school corporation's spring count of ADM made in the calendar year preceding by five (5) years the calendar year in which the property taxes are first due and payable; from

(ii) the school corporation's spring count of ADM made in the immediately preceding calendar year.

STEP TWO: Divide the STEP ONE result by four (4).

STEP THREE: Divide the STEP TWO result by the school corporation's spring count of ADM made in the calendar year preceding by five (5) years the calendar year in which the property taxes are first due and payable.

STEP FOUR: Multiply the STEP THREE amount by one and five-tenths (1.5).

STEP FIVE: Add the STEP FOUR result and one and six-hundredths (1.06).

STEP SIX: Determine the greater of the STEP FIVE result or one and six-hundredths (1.06).

STEP SEVEN: Determine the lesser of the STEP SIX result or one and twelve-hundredths (1.12).

(2) The maximum operating referendum tax that could otherwise be levied by the school corporation for taxes first due and payable in the current calendar year.

The tax rate for an operating referendum tax levy shall be decreased, if necessary, to comply with this limitation.

(e) The department of education shall provide to the department of local government finance each school corporation's applicable ADM counts as needed to make the determinations under this section.

SECTION 4. IC 20-24-11-5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY



1, 2026]: **Sec. 5. (a) An existing public elementary or secondary school may be converted into a charter school if the governing body of the school corporation:**

(1) votes to convert the school within the school corporation;
and

(2) submits to an authorizer a proposal described in IC 20-24-3-4 to convert the school within the school corporation to a charter school.

(b) The governing body of the school corporation described in subsection (a) may not serve as the authorizer of the charter school converted in accordance with this section.

(c) The organizer of a conversion charter school described in this section may be:

(1) the school corporation; or

(2) a nonprofit corporation that:

(A) is established by the school corporation;

(B) is incorporated or registered in Indiana;

(C) has been recognized by the Internal Revenue Service to be tax exempt and maintains such tax exempt status; and

(D) has an independent board whose members have been elected or selected under the organizer's application and that has entered into a contract under this article to operate a charter school.

(d) The governing body of a school corporation may convert more than one (1) existing public elementary or secondary school within the school corporation under this section. The school corporation or an organizer that is a nonprofit corporation established by the school corporation under subsection (c)(2) may:

(1) submit a separate proposal for each school to an authorizer; or

(2) with the approval of the authorizer, operate two (2) or more schools under a single charter, provided that each school site:

(A) is identified in the charter application and charter; and

(B) is subject to the performance conditions, accountability measures, and renewal determinations established in the charter.

(e) A conversion charter school described in this section shall comply with the following:

(1) All legal requirements described in section 1(d) of this chapter.

(2) Except as provided in this section, all requirements for



1 **charter schools under this article.**

2 SECTION 5. IC 20-25.7-5-1.5 IS ADDED TO THE INDIANA
3 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
4 [EFFECTIVE JULY 1, 2026]: **Sec. 1.5. A board may not at the same**
5 **time both:**

6 **(1) be an authorizer of a charter school; and**

7 **(2) enter into or have an agreement under this chapter with**
8 **the charter school.**

9 SECTION 6. IC 20-25.7-5-2, AS AMENDED BY P.L.213-2025,
10 SECTION 169, IS AMENDED TO READ AS FOLLOWS
11 [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) ~~The A~~ **A** board may enter into
12 an agreement with an organizer to:

13 **(1) reconstitute an eligible school as a participating innovation**
14 **network charter school; or to**

15 **(2) establish a participating innovation network charter school at**
16 **a location:**

17 **(A) selected by the board; ~~within the boundary of the school~~**
18 **~~corporation.~~ or**

19 **(B) within the geographic boundaries of any school**
20 **corporation with which the organizer enters into an**
21 **agreement under this chapter.**

22 Notwithstanding IC 20-26-7.1, a participating innovation network
23 charter school may be established within a vacant school building.

24 (b) The terms of the agreement entered into between ~~the a~~ **a board of**
25 **a school corporation** and an organizer must specify the following:

26 (1) A statement that the organizer authorizes the department to
27 include the charter school's performance assessment results under
28 IC 20-31-8 **for students who reside within the geographic**
29 **boundaries of the school corporation** when calculating the
30 school corporation's performance assessment under rules adopted
31 by the state board.

32 (2) Subject to an administrative fee as described in subsection (g),
33 a statement that the school corporation will distribute at least one
34 hundred percent (100%) of state tuition support dollars that the
35 school corporation receives ~~from student enrollment~~ **for students**
36 **who:**

37 **(A) reside within the geographic boundaries of the school**
38 **corporation; and**

39 **(B) are enrolled** in the participating innovation network
40 **charter school;**

41 in accordance with the school funding formula to the participating
42 innovation network charter school (if the participating innovation



network charter school is, **with regard to students described in this subsection**, treated in the same manner as a school operated by the school corporation under subsection (d)(2)).

(3) The performance goals and accountability metrics agreed upon for the charter school in the charter agreement between the organizer and the authorizer and a statement that the school corporation is prohibited from setting additional performance goals or accountability metrics.

(4) For an agreement entered into or renewed after June 30, 2023, the process the board is required to follow in determining whether to renew the agreement.

(5) The amount of money levied as property taxes that will be distributed by the school corporation to the organizer.

(6) Subject to section 5 of this chapter, the participating innovation network charter school's enrollment and discipline policies, including defined attendance areas and enrollment zones.

(7) A statement that the innovation agreement shall not create an obligation that would cause the organizer to be in violation of its charter agreement (as described in IC 20-24-1-3).

(c) If an organizer and ~~the~~ a board enter into an agreement under subsection (a), the organizer and the board shall notify the department that the agreement has been made under this section within thirty (30) days after the agreement is entered into.

(d) Upon receipt of the notification under subsection (c), for school years starting after the date of the agreement:

(1) the department shall include the participating innovation network charter school's performance assessment results under IC 20-31-8 **for students who reside within the geographic boundaries of the school corporation** when calculating the school corporation's performance assessment under rules adopted by the state board;

(2) the department shall:

(A) treat the participating innovation network charter school in the same manner as a school operated by the school corporation **with regard to students residing within the geographic boundaries of the school corporation** when calculating the total amount of state funding to be distributed to the school corporation unless subsection (e) applies; and

(B) **in determining the school corporation's enrollment, include only eligible pupils enrolled in the participating innovation network charter school who reside within the**



geographic boundaries of the school corporation.

(3) if requested by a participating innovation network charter school that reconstitutes an eligible school, the department may use student growth as the state board's exclusive means to determine the innovation network charter school's category or designation of school improvement under 511 IAC 6.2-10-10 for a period of three (3) years. Beginning with the 2019-2020 school year, the department may not use student growth as the state board's exclusive means to determine an innovation network charter school's category or designation of school improvement. This subdivision expires July 1, 2023.

(e) If a participating innovation network school was established before January 1, 2016, and for the current school year has a complexity index that is greater than the complexity index for the school corporation that the innovation network school has contracted with, the innovation network school shall be treated as a charter school for purposes of determining tuition support. This subsection expires June 30, 2027.

(f) If the board or organizer fails to follow the process described in subsection (b)(4), the board or organizer may appeal to the state board. The state board shall hear the appeal in a public meeting and ensure that the board or organizer follows the renewal process specified in the agreement. The board may not terminate an agreement until the board has provided evidence to the state board that the board has complied with the renewal process specified in the agreement. The state board shall issue a decision on an appeal under this subsection not later than sixty (60) days after the date the board or organizer submitted the appeal to the state board.

(g) If an administrative fee is included in an agreement entered into or renewed **under this chapter** after June 30, 2023, **2026**, under this section, ~~the fee may not exceed one percent (1%) of the total amount of state tuition support that is distributed to the school corporation based on the participating innovation network charter school's student enrollment.~~ **each school corporation with which an organizer of a participating innovation network charter school has entered into an agreement may assess an administrative fee of not more than one percent (1%) of the tuition support dollars that the school corporation receives for students who:**

(1) reside within the geographic boundaries of the school corporation; and

(2) are enrolled in the participating innovation network charter school.



(h) An agreement entered into between the board and an organizer under this section may not be altered without written approval from the organizer.

SECTION 7. IC 20-25.7-5-2.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 2.5. In addition to any state tuition support dollars a participating innovation network charter school receives from a school corporation under this chapter, the department shall treat the participating innovation network charter school as a charter school when calculating the tuition support to be distributed to the innovation network charter school for students of the innovation network charter school who do not reside within the geographic boundaries of a school corporation with which the innovation network charter school has an agreement under this chapter.**

SECTION 8. IC 20-25.7-5-5, AS AMENDED BY P.L.220-2021, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 5. (a) IC 20-24-5-5 (with the exception of IC 20-24-5-5(g)) does not apply to a participating innovation network charter school that enters into an agreement with the board to reconstitute or establish an eligible school.**

(b) Except as provided in subsections (c) and (d), a participating innovation network charter school must enroll any eligible student who submits a timely application for enrollment.

(c) A participating innovation network charter school that reconstitutes or establishes an eligible school may limit new admissions to the participating innovation network charter school to:

- (1) ensure that any student with legal settlement in the attendance area, or in ~~the school corporation~~ **any school corporation with which the participating innovation network charter school has entered into an agreement under this chapter** if the school does not have a defined attendance area, may attend the charter school;
- (2) ensure that a student who attends the participating innovation network charter school during a school year may continue to attend the charter school in subsequent years;
- (3) allow the siblings of a student alumnus or a current student who attends the participating innovation network charter school to attend the charter school;
- (4) allow preschool students who attend a Level 3 or Level 4 Paths to QUALITY program preschool to attend kindergarten at the participating innovation network charter school if the participating innovation network charter school and the school



corporation or preschool provider have entered into an agreement to share services or facilities;

(5) allow each student who qualifies for free or reduced price lunch under the national school lunch program to receive preference for admission to the participating innovation network charter school if the preference is specifically provided for in the charter and is approved by the authorizer; and

(6) allow each student who attended a turnaround academy or attends a school that is located in the same school building as the participating innovation network charter school to receive preference for admission to the participating innovation network charter school if the preference is specifically provided for in the participating innovation network charter school's charter and is approved by the authorizer of the participating innovation network charter school.

(d) A participating innovation network charter school with a curriculum that includes study in a foreign country may deny admission to a student if:

(1) the student:

(A) has completed fewer than twenty-two (22) academic credits required for graduation; and

(B) will be in the grade 11 cohort during the school year in which the student seeks to enroll in the participating innovation network charter school; or

(2) the student has been suspended (as defined in IC 20-33-8-7) or expelled (as defined in IC 20-33-8-3) during the twelve (12) months immediately preceding the student's application for enrollment for:

(A) ten (10) or more school days;

(B) a violation under IC 20-33-8-16;

(C) causing physical injury to a student, a school employee, or a visitor to the school; or

(D) a violation of a school corporation's drug or alcohol rules.

For purposes of subdivision (2)(A), student discipline received under IC 20-33-8-25(b)(7) for a violation described in subdivision (2)(B) through (2)(D) must be included in the calculation of the number of school days that a student has been suspended.

(e) A participating innovation network charter school may give enrollment preferences to children of the participating innovation network charter school's founders, governing board members, and participating innovation network charter school employees, as long as the enrollment preference under this subsection is not given to more



than ten percent (10%) of the participating innovation charter school's total population and there is sufficient capacity for a program, class, grade level, or building to ensure that any student with legal settlement in the attendance area may attend the school.

(f) This subsection applies to an existing charter school that enters into an innovation network agreement with ~~the~~ a board. During the charter school's first year of operation as a participating innovation network charter school, the charter school may limit admission to:

(1) those students who were enrolled in the charter school on the date it entered into the innovation network agreement; and

(2) siblings of students described in subdivision (1).

(g) This subsection applies if the number of applications for a program, class, grade level, or building exceeds the capacity of the program, class, grade level, or building. If a participating innovation network charter school receives a greater number of applications than there are spaces for students, each timely applicant must be given an equal chance of admission. The participating innovation network charter school that is not in a county containing a consolidated city must determine which of the applicants will be admitted to the participating innovation network charter school or the program, class, grade level, or building by random drawing in a public meeting with each timely applicant limited to one (1) entry in the drawing. However, the participating innovation network charter school located in a county with a consolidated city shall determine which of the applicants will be admitted to the participating innovation network charter school or the program, class, grade level, or building by using a publicly verifiable random selection process.

SECTION 9. IC 20-25.7-5-6, AS ADDED BY P.L.162-2024, SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Subject to an administrative fee as described in section 2(g) of this chapter, a school corporation that enters into an agreement with an organizer under this chapter shall distribute at least one hundred percent (100%) of state tuition support dollars that the school corporation receives from ~~student enrollment~~ **students who:**

(1) reside in the geographic boundaries of the school corporation; and

(2) are enrolled in the participating innovation network charter school;

in accordance with the school funding formula to the participating innovation network charter school.

(b) Unless an agreement entered into before July 1, 2024, between a board and an organizer provides otherwise, all participating



1 innovation network charter schools operating under existing
 2 agreements with boards as of July 1, 2024, will receive funds as
 3 required under subsection (a).

4 SECTION 10. IC 20-32-6.5-3, AS ADDED BY P.L.180-2025,
 5 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 6 JULY 1, 2026]: Sec. 3. (a) Beginning with the 2026-2027 school year,
 7 if a school determines that a student in kindergarten through grade 8 is
 8 at risk of not achieving grade level proficiency in mathematics as
 9 determined by an analysis of the student's data from:

10 (1) a grade level screener approved by the department; or

11 (2) a through-year statewide assessment;

12 the school must provide intervention that meets the requirements under
 13 subsection (b).

14 (b) A school shall provide intervention to a student described in
 15 subsection (a) that meets the following conditions:

16 (1) The intervention includes a multitiered system of support that
 17 progresses from less to more intensive support based on the
 18 student's individual needs.

19 (2) The intervention is aligned to daily Tier I instruction and
 20 standard level learning progressions.

21 (3) The intervention is:

22 (A) targeted;

23 (B) differentiated; and

24 (C) supplemental to Tier I instruction.

25 (4) The intervention:

26 (A) is aligned with evidence based instructional strategies to
 27 promote conceptual understanding, procedural fluency, and
 28 real world problem solving; and

29 (B) allows a student opportunities to interact, show progress,
 30 and demonstrate understanding through rigorous grade level
 31 content.

32 (5) The intervention includes continual assessment and in depth
 33 analysis of each student's data to inform the flexible movement in
 34 and out of Tiers II and III.

35 **(c) Not later than fifteen (15) days after a school makes a**
 36 **determination under subsection (a) that a student is at risk, the**
 37 **school shall provide notice to a parent of the student regarding the**
 38 **determination. The notification may contain the following:**

39 **(1) Specific information about how the student is performing.**

40 **(2) Information about the intervention the student will receive**
 41 **from the school.**

42 **(3) A list or description of any recommended resources**



1 **available for use at home to support the student's academic**
 2 **growth in mathematics.**

3 ~~(c)~~ (d) The department shall provide guidance on the multitiered
 4 system that a school is required to provide under subsection (b).

5 SECTION 11. IC 20-43-13-4, AS AMENDED BY P.L.213-2025,
 6 SECTION 197, IS AMENDED TO READ AS FOLLOWS
 7 [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) Except as provided in
 8 subsections (c) and (d), the complexity index is the percentage of the
 9 school corporation's students who were receiving Supplemental
 10 Nutrition Assistance Program (SNAP) benefits, Temporary Assistance
 11 for Needy Families (TANF) benefits, or foster care services as of
 12 October 1 in the school year ending in the later of:

13 (1) 2025; or

14 (2) the first year of operation of the school corporation.

15 (b) For a conversion charter school, the percentage determined
 16 under this section is the percentage of the sponsor school corporation.

17 (c) Except as provided in subsection (d), the complexity index for
 18 a school corporation that has entered into an agreement with one (1) or
 19 more charter schools to participate as an innovation network charter
 20 school under IC 20-25.7-5 for a state fiscal year is equal to the result
 21 using the following formula:

22 STEP ONE: Determine:

23 (A) the school corporation's enrollment; minus

24 (B) the enrollment **of students described in**
 25 **IC 20-25.7-5-2(b)(2)** of each participating innovation network
 26 charter school.

27 STEP TWO: Determine the number of students in the school
 28 corporation who were receiving Supplemental Nutrition
 29 Assistance Program (SNAP) benefits, Temporary Assistance for
 30 Needy Families (TANF) benefits, or foster care services as of
 31 October 1 in the school year ending in 2025, not including
 32 students enrolled in each participating innovation network charter
 33 school.

34 STEP THREE: Divide the result of STEP TWO by the result of
 35 STEP ONE.

36 STEP FOUR: Determine the enrollment **of students described in**
 37 **IC 20-25.7-5-2(b)(2)** of each participating innovation network
 38 charter school.

39 STEP FIVE: Determine the number of students **described in**
 40 **IC 20-25.7-5-2(b)(2)** in each participating innovation network
 41 charter school who were receiving Supplemental Nutrition
 42 Assistance Program (SNAP) benefits, Temporary Assistance for



1 Needy Families (TANF) benefits, or foster care services as of
 2 October 1 in the school year ending in the later of:

3 (A) 2025; or

4 (B) the first year of operation of the participating innovation
 5 network charter school.

6 STEP SIX: Divide the result of STEP FIVE by the result of STEP
 7 FOUR.

8 STEP SEVEN: For each participating innovation network charter
 9 school, determine the greater of:

10 (A) the result of STEP THREE; or

11 (B) the result of STEP SIX.

12 STEP EIGHT: For each participating innovation network charter
 13 school, multiply the result of STEP SEVEN by the result of STEP
 14 FOUR.

15 STEP NINE: Determine the sum of:

16 (A) the result of STEP TWO; plus

17 (B) the results of STEP EIGHT, for each participating
 18 innovation network charter school.

19 STEP TEN: Determine the sum of:

20 (A) the result of STEP ONE; plus

21 (B) the results of STEP FOUR for each participating
 22 innovation network charter school.

23 STEP ELEVEN: Divide the STEP NINE result by the STEP TEN
 24 result.

25 (d) If the complexity index of a participating innovation network
 26 charter school that was established before January 1, 2016, is, for the
 27 current school year, greater than the complexity index for the school
 28 corporation with which the innovation network charter school has
 29 contracted, the complexity index of the participating innovation
 30 network charter school is determined as described in IC 20-25.7-5-2(e).

31 SECTION 12. IC 20-51-1-5, AS AMENDED BY P.L.162-2024,
 32 SECTION 27, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 33 JULY 1, 2026]: Sec. 5. "Eligible student" refers to an individual who:

34 (1) has legal settlement in Indiana;

35 (2) is at least four (4) years of age and less than twenty-two (22)
 36 years of age on October 1 of the applicable school year; **and**

37 (3) either has been or is currently enrolled in a participating
 38 school. **and**

39 ~~(4) is a member of a household with an annual income of not~~
 40 ~~more than four hundred percent (400%) of the amount required~~
 41 ~~for the individual to qualify for the federal free or reduced price~~
 42 ~~lunch program.~~



COMMITTEE REPORT

Mr. Speaker: Your Committee on Education, to which was referred House Bill 1176, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 1, between the enacting clause and line 1, begin a new paragraph and insert:

"SECTION 1. IC 4-29.5-18-1, AS ADDED BY P.L.171-2021, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2027]: Sec. 1. For so long as the Band makes payments in accordance with IC 4-29.5-17, the Band shall allocate a portion of the annual payment to provide funding for public **or private** postsecondary and vocational education for Band citizens (the "Pokagon Indiana Education Fund").

SECTION 2. IC 4-29.5-18-2, AS ADDED BY P.L.171-2021, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2027]: Sec. 2. The Pokagon Indiana Education Fund shall be used solely to make payments directly to Indiana public **or private** institutions of higher learning or workforce development and training programs approved by the Indiana Department of Workforce Development for eligible Band citizens for direct costs and expenses, such as tuition, on-campus room and board, and other direct education expenses. To be eligible, a Band citizen must (i) be enrolled in the Band prior to benefitting from any payment, and (ii) meet the education or workforce provider admission requirements. Priority shall be given to Band citizens who are legal residents of the State of Indiana as of the date of their application for benefits."

Page 4, between lines 23 and 24, begin a new paragraph and insert:

"SECTION 5. IC 20-25.7-5-1.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 1.5. A board may not at the same time both:**

- (1) be an authorizer of a charter school; and**
- (2) enter into or have an agreement under this chapter with the charter school."**

Page 13, between lines 3 and 4, begin a new paragraph and insert:

"SECTION 11. IC 20-51-1-5, AS AMENDED BY P.L.162-2024, SECTION 27, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. "Eligible student" refers to an individual who:

- (1) has legal settlement in Indiana;
- (2) is at least four (4) years of age and less than twenty-two (22)



years of age on October 1 of the applicable school year; **and**
 (3) either has been or is currently enrolled in a participating
 school. **and**
 (4) is a member of a household with an annual income of not
 more than four hundred percent (400%) of the amount required
 for the individual to qualify for the federal free or reduced price
 lunch program."

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1176 as introduced.)

BEHNING

Committee Vote: yeas 9, nays 2.

COMMITTEE REPORT

Mr. Speaker: Your Committee on Ways and Means, to which was
 referred House Bill 1176, has had the same under consideration and
 begs leave to report the same back to the House with the
 recommendation that said bill be amended as follows:

Delete pages 14 through 21.

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1176 as printed January 8, 2026.)

THOMPSON

Committee Vote: yeas 15, nays 7.

EH 1176—LS 6675/DI 110



COMMITTEE REPORT

Mr. President: The Senate Committee on Education and Career Development, to which was referred House Bill No. 1176, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill DO PASS and be reassigned to the Senate Committee on Appropriations.

(Reference is to HB 1176 as printed January 22, 2026.)

RAATZ, Chairperson

Committee Vote: Yeas 7, Nays 3

EH 1176—LS 6675/DI 110

